



The Sindh Government Gazette

Published by Authority

KARACHI, FRIDAY, MAY 11, 2018

PART – IV

PROVINCIAL ASSEMBLY OF SINDH NOTIFICATION KARACHI, THE 11TH MAY, 2018

NO.PAS/LEGIS-B-09/2018-The Provincial Assembly of Sindh in its sitting held on 09th March, 2018 passed the Sindh Universities and Institutes Laws (Amendment) Bill, 2018 and was sent to Honourable Governor for accord his assent as required under clause (2)(a) of Article 116 but he, instead of accord assent to the Bill, returned the same with message in exercise of powers vested upon him under clause 2(b) of Article 116.

The Provincial Assembly of Sindh in its sitting held on 13th April, 2018 reconsidered the Bill and passed it again which was accordingly sent to the Governor for accord his assent. The period of ten days has been elapsed and the subject bill shall be deemed to have been assented by the Governor in view of clause (3) of Article 116 of the Constitution and is hereby published as an Act of the Legislature of Sindh.

THE SINDH UNIVERSITIES AND INSTITUTES LAWS (AMENDMENT) ACT, 2018.

SINDH ACT NO. XV OF 2018

AN ACT

to amend certain laws relating to the Universities and Institutes, in force, in the Province of Sindh.

WHEREAS it is expedient to maintain uniformity in the Preamble, organization, management and control of public sector Universities and degree awarding Institutes in the Province of Sindh and to amend certain laws relating thereto, in the manner hereinafter appearing:

It is hereby enacted as follows:-

4. For section 11, the following shall be substituted:-

"(1) There shall be a Director of the Institute who shall be eminent academic or a distinguished **Medical Professional and is qualified to be a full Professor** and shall be appointed by the Chief Minister for a period of four years, which may be extended for one more term on such terms as the Chief Minister may determine"

(2) The Professional and academic qualifications, **experience and age** for the post of the Director shall be as such as may be prescribed.";

"(3) The Chief Minister shall, in case of allegation of gross misconduct, inefficiency, corruption, violation of budgetary provisions, moral turpitude, maladministration and mismanagement, remove the Director, **on the basis of substantiated findings of an enquiry committee** after giving him an opportunity of show cause against such removal."

"(4) The Director may avail leave with the permission of Chief Minister or any other authority duly authorized by the Chief Minister in this behalf"

5. In section 15, after clause (5), the following shall be inserted:-

"(6) Secretary Universities and Boards Department."

12. **The Shaheed Mohtarma Benazir Bhutto Medical University Larkana Act, 2008 (Sindh Act No. VI of 2008).**

1. In section 2 -

(i) after clause (iv), the following shall be inserted:-

"(iv-a) "Chief Minister" means the Chief Minister, Sindh;"

(ii) for clause (vi), the following shall be inserted:-

"(vi-a) "Commission" means the Sindh Higher Education Commission established under the Sindh Higher Education Commission Act, 2013 (Sindh Act No. XI of 2013);"

(iii) After sub-clause (xii), the following shall be inserted:-

"(xii-a) "Higher Education Commission Pakistan" means the Commission established under Higher Education Commission Pakistan Ordinance 2002;"

(iv) after clause (xiv), the following shall be inserted:-

"(xiv-a) "Professor Emeritus" means a retired Professor of the University or an outgoing Vice-Chancellor of the University conferred with this title on terms and conditions as may be prescribed;"

2. After section 5, the following shall be inserted:-

"5-A Admission Policy (1). The Government may issue guidelines and principles with respect to admissions.

(2) The Academic Council shall frame Admission Policy in consonance with such guidelines and Principles."

3. In section 8 -

(i) in sub-section (1), the words "Chairperson of the Senate" shall be omitted;

(ii) in sub-section (2), the words "at the meetings of the Senate" shall be omitted;

(iii) for sub-section (3), the following shall be substituted:-

"(3) The members of the Senate shall be appointed by the Chief Minister from amongst the persons recommended by the Representation Committee in accordance with this Act or the statutes, as the case may be, alongwith those elected;"

(iv) in sub-section (4), for the word "Government", the words "Chief Minister" shall be substituted;

(v) for sub-section (5), the following shall be substituted:-

"If the Chief Minister is satisfied that serious irregularity or mismanagement with respect to the affairs of the University has occurred, he may -

(a) as regards to the proceedings of the Senate, direct that specified proceedings be considered and appropriate action taken within one month of the direction having been issued:

Provided that if the Chief Minister is satisfied that either no reconsideration has been carried out or that the re-consideration has failed to address the

concern expressed, he may, after calling upon the Senate to show cause in writing, appoint a five member Review Panel to examine and report to Chief Minister on the functioning of the Senate. The report of Panel shall be submitted within such time as the Chief Minister may direct. The Review Panel shall be drawn from persons of eminence in academics and in the fields of law, accountancy and administration; and

- (b) as regards proceedings of any Authority or with respect to matters within the competence of any Authority other than the Senate to exercise powers under section 17."

4. In section 9, for the word "Chancellor", wherever appearing, the words "Chief Minister" shall be substituted.

5. After section 9, the following shall be inserted:-

"9-A. Pro-Chancellor. (1) The Minister from Cabinet to be nominated by the Chief Minister shall be the Pro-Chancellor of the University.

(2) Should the Chief Minister be incapacitated acting as such due to absence or any other cause, the Pro-Chancellor shall exercise the powers and perform all the duties of the Chief Minister."

6. In section 10 -

- (i) for sub-section (1), the following shall be substituted:-

"(1) There shall be a Vice Chancellor of the University who shall be eminent academic or a distinguished **Medical Professional** and is **qualified to be a full Professor** and shall be appointed by the Chief Minister for a period of four years, which may be extended for one more term on such terms as the Chief Minister may determine."

- (ii) after sub-section (1-A), the following shall be inserted:-

"(1-A) The professional and academic qualifications, ~~experience~~ and age for the post of Vice-Chancellor shall be as such as may be prescribed."

(iii) after sub-section (8), the following shall be added:-

"(9) The Chief Minister shall, in case of allegation of gross misconduct, inefficiency, corruption, violation of budgetary provisions, moral turpitude, maladministration and mismanagement, remove the Vice-Chancellor on the basis of substantiated findings of an enquiry committee, after giving him an opportunity of show cause against such removal.

(10) The Vice Chancellor may avail leave with the permission of Chief Minister or any other authority duly authorized by the Chief Minister in this behalf."

7. In section 11-A -

(i) for sub-section (1), the following shall be substituted:-

"(1) The Pro-Vice Chancellor shall be eminent academic and a distinguished Medical Professional appointed by the Chief Minister, from amongst University Professors for the main campus or of the additional campus, if any, or for both the campuses jointly or separately, on such terms and conditions and such age and for such period not exceeding four years at a time as may be prescribed."

(ii) in sub-section (2), for the word "Chancellor", the words "Chief Minister" shall be substituted;

(iii) in sub-section (3), after the words "Academic Council", the words "for the matter pertaining to the campus for which he is appointed" shall be inserted.

8. In section 12, in sub-section (1), for the word "Government", the words "the Syndicate on the recommendations of the Selection Board" shall be substituted.

9. For section 13, the following shall be substituted:-

"13. Director of Finance (1) The Director of Finance shall be a whole-time officer of the University and shall be appointed by Chief Minister from a panel of three candidates recommended by the Search Committee on such terms and conditions as it may determine. He shall -

- (a) hold office for a period of three years on the expiry of which he shall be eligible for re-appointment;
- (b) be the Chief Financial Officer of the University;
- (c) manage the property, assets, liabilities, finances, receipts, expenditure, funds and the investments of the University;
- (d) prepare the annual and revised budget estimates of the University and present them to the Finance Committee, the Syndicate and the Senate;
- (e) ensure that the funds of the University are expended on the purposes for which they are provided; and
- (f) perform such other duties as may be prescribed.

(2) The experience as well as professional and academic qualifications for the post of Director of Finance shall be such as may be prescribed.

(3) The Director Finance assisted by the Chief Accountant, Bursar and Resident Auditor."

10. After section 13, the following shall be inserted:-

"13-A. Resident Auditor, Chief Accountant and Bursar (1) The Resident Auditor shall be whole-time officer of the University and shall be appointed by the Pro-Chancellor who shall be a Cabinet Minister on such terms and conditions as it may determine. He shall be responsible for all matters connected with the auditing of accounts of the University and shall perform such other duties as may be prescribed.

(2) The Chief Accountant and Bursar shall be whole-time officers of the University and shall be appointed by the Syndicate on the recommendations of the Selection Board on such terms and conditions as it may determine. They shall assist the Director Finance and perform such other duties as may be prescribed."

11. In section 14, in sub-section (1), for the word "Government", the words "the Syndicate on the recommendations of the Selection Board" shall be substituted.

12. After section 14, the following shall be inserted:-

"14-A. The Director Planning and Development. The Director Planning and Development shall be whole-time officer of the University and shall be appointed by the

Syndicate on the recommendations of the Selection Board on such terms and conditions as it may determine. He shall be responsible for the planning and development of the University and shall present the development plans and proposals to the Finance and Planning Committee and other relevant authorities of the University.

14-B. The Director (Works and Services). The Director Works and Services shall be whole-time officer of the University and shall be appointed by the Syndicate on the recommendations of the Selection Board on such terms and conditions as it may determine. He shall be responsible for the execution of development projects, provision of services, procurement and installation of equipment and machinery and other tools and materials and proper maintenance of all works and services of the University.

14-C. The Librarian. The Librarian shall be a whole-time officer of the University and shall be appointed by the Syndicate on the recommendations of the Selection Board.

14-D. Other whole-time Officers of the University. All the other remaining officers mentioned in section 7, shall be appointed by such officer or authority as authorized by Government on such terms and conditions as it may determine. They shall perform their duties as may be prescribed."

13. In section 16, for the word "Chancellor" wherever appearing, the words "Chief Minister" shall be substituted;

14. For section 18, the following shall be substituted:-

"(1) The Chief Minister may cause an inspection or inquiry to be made in respect of any matter connected with the University, and shall, from time to time, appoint such person or persons for the purposes of carrying out inspection of -

- (i) the University, its buildings, laboratories, libraries, museums, workshops and equipment;
- (ii) any institution, college or hostel maintained or recognized by, or affiliated to the University;
- (iii) the teaching and other work conducted by the University; and
- (iv) the conduct of examinations held by the University;

(2) The Chief Minister shall, in every such case as aforesaid, give notice to the Syndicate of his intention to cause an inspection or enquiry to be made, and the Syndicate shall be entitled to be represented there-at.

(3) The Chief Minister shall communicate to the Syndicate his views with regard to the results of such inspection or inquiry and shall, after ascertaining the views thereon of the Syndicate, advise the Syndicate on the action to be taken.

(4) The Syndicate shall communicate to the Chief Minister such action, if any, as has been taken or may be proposed to be taken upon the results of the inspection or inquiry. Such communication shall be submitted to the Chief Minister within such time as may be specified by the Chancellor.

(5) Where the Syndicate does not, within a specified time, take action to the satisfaction of the Chief Minister, the Chief Minister may, after considering any explanation furnished or representation made by the Syndicate, issue such directions as he thinks fit, and the Vice-Chancellor shall comply with such directions."

15. In section 19 –

(i) for sub-section (1), the following shall be substituted:-

"(1) The Syndicate shall consist of –

- (i) the Vice-Chancellor, who shall be its Chairperson;
- (ii) the Pro-Vice-Chancellor, if appointed to the extent of matters relevant to the concerned campus;
- (iii) one member of the Provincial Assembly to be nominated by the Speaker of the Assembly;
- (iv) two members of the Senate elected by the Senate;
- (v) A Judge of the High Court nominated by the Chief Justice;
- (vi) the Secretary to the Government of Sindh of the relevant Department or his nominee not below the rank of an Additional Secretary;
- (vii) **One Nominee of Higher Education Commission of Pakistan;**
- (viii) the Secretary to Government of Sindh, Universities and Boards or his nominee not below the rank of an Additional Secretary;

- (ix) the Chairperson Sindh Higher Education Commission or his nominee not below the level of a whole-time member of the Commission;
- (x) one Dean to be nominated by the Government on the recommendations of the Vice-Chancellor;
- (xi) one Professor to be elected by the Professors of the University from amongst themselves;
- (xii) one Associate Professor to be elected by the Associate Professors of the University from amongst themselves;
- (xiii) one Assistant Professor of the University to be elected by the Assistant Professors from amongst themselves;
- (xiv) one lecturer with minimum service of two years to be elected by the lecturers of the University from amongst themselves;
- (xv) three persons of eminence to be nominated by the Chief Minister;
- (xvi) one Principal of an affiliated college, if any, and the Principals of the constituent colleges to be nominated by the Vice-Chancellor;
- (xvii) one Alim and one woman not serving in any educational institution to be nominated by the Chief Minister; and
- (xviii) one University officer of administration side, to be elected from amongst the administrative officers."

(ii) sub-section (3) shall be omitted.

16. In section 23, in sub-section (3), the words "Syndicate and the" shall be omitted;

17. In section 40, for the word "Chancellor" wherever appearing, the words "Chief Minister" shall be substituted.

18. In the first statutes -

- (i) for the word "Chancellor" wherever appearing, the words "Chief Minister" shall be substituted; and
- (ii) in clause 6, in sub-clause (1)(i) the following shall be inserted:-
"(i-a) Secretary Universities and Boards;"